

9:00 4	26CV484135	<i>First Technology Federal Credit Union</i> <i>v.</i> <i>Thien Nguyen, et al.</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in Requests for Admissions, Set One, to be admitted by Defendant <i>See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.</i>
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Line 1

Case Name: *Sedigheh Nahid Rahbar, et al. v. Sutter Health, et al.*

Case No.: 23CV409625

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Sutter Heath and Sutter Bay Medical Foundation dba Palo Alto Medical Foundation (“Defendants”) move for summary judgment or, in the alternative, summary adjudication, in their favor and against Plaintiffs Sedigheh Nahid Rahbar and Ali Rahbar (“Defendants”) under Code of Civil Procedure Section 473c on the grounds that:

1. Defendants, healthcare facilities, were not negligent in maintaining, managing or operating its premises, and there is no allegation or evidence that the examination table constituted a dangerous condition, was defective, or was in disrepair.
2. Plaintiffs’ Complaint, which alleges medical negligence, is time barred by the applicable statute of limitations set forth in Code of Civil Procedure Section 340.5.

Notice of Motion (the “Motion”) at 1:20-2:2 (filed: Dec. 1, 2025).

The Motion came on for hearing on June 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiffs commenced this civil action by filing their Complaint against Defendants on January 3, 2023, asserting a premises-liability claim for Defendant’s negligence involving a dangerous condition on the property, and a derivative claim for loss of consortium. (See Complaint at ¶¶3-11 (premises-liability claim) & ¶¶ 12-14 (loss of consortium claim)) (filed: Jan 3. 2023).

According to the Complaint, on October 4, 2021, at the podiatry clinic at PAMF in Palo Alto, Plaintiff had a medical appointment. (Complaint, ¶ 5.) Plaintiff was placed in an exam room and instructed to wait for the doctor on the exam table. (*Ibid.*) While waiting, the exam table began elevating without explanation and Plaintiff then fell off the bed and sustained serious injuries. (*Ibid.*)

On December 1, 2025, Defendants filed a motion for summary judgment, or in the alternative, summary adjudication in the alternative, under Code of Civil Procedure Section 437c on the grounds listed above. Motion at 1:20-2:2, *supra*.

This Motion is unopposed by Plaintiffs.

Legal Standard on Motion for Summary Judgment

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Augilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Augilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

There is no evidence and no triable issue of material fact that Defendants had actual or constructive knowledge of any dangerous condition.

Plaintiffs’ first cause of action is a premises-liability claim for Defendant’s negligence involving a dangerous condition on the property. Complaint at ¶¶ 5-11.¹ “Broadly speaking, premises liability alleges a defendant property owner allowed a dangerous condition on its property . . .” (*Delgado v. Am. Multi-Cinema* (1999) 72 Cal.App.4th 1403, 1406, fn. 1.) As held by our California Supreme Court: “Because the

¹ The Complaint’s only other cause of action—its second cause of action for “loss of consortium”—is entirely derivative on the first cause of action for negligence-based premises liability in the sense that the success of the second cause of action depends entirely on that of the first cause of action. Simply put, if the first cause of action fails, so does the second. (*Vanhooser v. Superior Court* (2012) 206 Cal.App.4th 921, 922.)

owner is not the insurer of the visitor's personal safety, the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability." *Ortega v. Kmart Corp.* (2001) 26 Cal. 4th 1200, 1206 (citing *Girvetz v. Boys' Market, Inc.* (1949) 91 Cal. App. 2d 827, 829)).

Moreover, "where the plaintiff relies on the failure to correct a dangerous condition to prove the owner's negligence, the plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it." *Ortega*, 26 Cal. at 1206 (citing *Louie v. Hagstrom's Food Stores* (1947) 81 Cal. App. 2d 601, 607); *see also*, *Resolution Trust Corp. v. Rossmoor Corp.* (1995) 34 Cal. App. 4th 93, 102 (for a premises-liability claim against defendant landlord, "[t]he defendant must be aware of the specific dangerous condition and be able to do something about it before liability will attach."); *see also*, *Joshi v. Fitness Internat., LLC* (2022) 80 Cal.App.5th 814, 833 (where Plaintiff did not present evidence that defendant had actual or constructive knowledge of the dangerous condition, her premises liability claim was properly disposed of through summary judgment)).

On this point in support of their Motion, Defendants provide the following evidence showing that they had no actual or constructive knowledge of any dangerous condition regarding the podiatry examination chair or anywhere else in the examination room:

1. Plaintiff was waiting in the examination room by herself and sitting on the examination chair and before any provider entered the room, Plaintiff fell off or out of the exam chair. (UMF 5 [Ex. A; Ex. E, Plaintiff's Deposition 35:7-21 – 36:12-14].)
2. Before Plaintiff's incident, there were no reports of any malfunction or repairs required or requested for the specific exam chair and there no prior incident reports related to the chair. (UMF 6 [Ex. C, Green Decl., ¶ 2].)
3. After the incident on October 21, 2021, Bennie Green performed a safety check function test on the exam chair and found it to be in proper working order and was performing according to manufacturer specifications. (UMF 7 [Ex. C, Green Decl., ¶ 2].)
4. There was no "bed" in the examination room for Plaintiff to fall off of. [UMF 7 [Ex. C; Ex. D].)

Based on this proffered evidence and the Court's careful review of the entire record, the Court finds that Defendants meet their initial burden by demonstrating that they did not have knowledge (actual or constructive) of the dangerous condition before Plaintiff's incident. (*Ortega*, 26 Cal. at 1206; *Resolution Trust Corp.*, 34 Cal. App. 4th at 102; *Joshi*, 80 Cal. App. 5th at 833, *supra*.)

As Defendants have met their initial burden on this Motion, the burden of production shifts to the opposing party, here Plaintiffs, to make a prima facie showing of the existence of a triable issue of material fact on this *key* issue of Defendants' actual or

constructive knowledge of a dangerous condition for premises liability to attach. But as Plaintiffs fail to oppose the Motion at all, Plaintiffs fails to show the existence of a triable issue of fact on this key point for premises liability. Hence, as there is no triable issue of material fact on the premises-liability claim, Defendants' Motion for summary adjudication of the first cause of action for premises liability is GRANTED.

As noted above, the only other claim in the Complaint is the second cause of action for loss of consortium,² which is entirely derivative on the first cause of action for premises liability. (*See Vanhooser v. Superior Court* (2012) 206 Cal.App.4th 921, 922) (explaining that a loss of consortium claim "is, by its nature, dependent on the existence of a cause of action for tortious injury to a spouse.")). As the first causes of action for premises liability fails on at the summary adjudication stage for the reasons explained above, so fails the derivative loss-of-consortium claim. Accordingly, Defendants' Motion for summary adjudication of the loss-of-consortium claim is GRANTED as well.

As summary adjudication has now been GRANTED for every cause of action in this civil action, it follows as a matter of logic and law that Defendants' Motion for Summary Judgment is GRANTED.

Moreover, as the Court rules that Defendants' Motion for Summary Judgment is GRANTED, which disposes of this entire civil action, the Court need not and does not address Defendants' additional arguments regarding the statute of limitations.

Conclusion and Order

Accordingly, Defendants' Motion for Summary Judgment is **GRANTED**.

Within 20 days of today, Defendants Sutter Heath and Sutter Bay Medical Foundation dba Palo Alto Medical Foundation, as the prevailing parties in this civil action, are **ORDERED** to prepare and file a proposed Judgment in favor of Defendants and against Plaintiffs.

SO ORDERED.

Date: June 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

² This derivative claim is brought on behalf of Ali Rahbar, Plaintiff's spouse, against Defendants. (See Complaint, ¶¶ 12-13.)

Line 2

Case Name: *Jane Doe v. Support Systems Homes, Inc., et al.*

Case No.: 23CV410157

Off Calendar. (Defendant Support System Homes Inc.'s Motion to Stay Proceedings, filed on October 15, 2025, was reset for June 26, 2026 at 9AM in Dept. 21 before Judge Socrates Manoukian, but then was vacated by the moving party.)

Line 3

Case Name: *Miriam Ben Abdallah, M.D. v. Stephen W. Fackler, et al.*

Case No.: 24CV439631

See Order above (with four Rulings).

Line 4

Case Name: *First Technology Federal Credit Union v. Thien Nguyen, et al.*

Case No.: 26CV484135

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff First Technology Federal Credit Union (“Plaintiff”) moves that the truth of all matters specified in the Requests for Admissions, Set One, be deemed admitted by Defendant Thien Nguyen (“Defendant”) under Code of Civil Procedure Sections 2023.010 *et seq.* and 2031.010 *et seq.* Notice of Motion (the “Motion”) at 1:25-2:2 (filed: May 26, 2026). Plaintiff also moves for a monetary sanction against Defendant in the amount of \$1,792.50 to compensate Plaintiff for its attorneys’ fees and costs for this Motion. *Id.* at 2:2-4.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admission, Set One, on Defendant on March 17, 2026. Declaration of attorney Melody G. Anderson In Support of Motion (“Anderson Decl.”) at ¶ 2.

Defendant never responded to the Requests for Admission, Set One, Anderson Decl. at ¶¶ 3-6, in spite of Defendant’s obligation to respond to them under Code of Civil Procedure section 2033.240.

Under Code of Civil Procedure section 2033.280, because Defendant failed to respond to the Requests for Admission, Set One, Plaintiff moves for an Order deeming admitted by Defendant the truth of each matter in the Requests for Admission, Set One. C.C.P. 2033.280(b).

The Motion is well supported by the law, well supported by the facts set forth in the Anderson Declaration, and reasonable in all respects.

Defendant does not argue otherwise. Indeed, Defendant has not opposed this Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).).

Regarding the monetary sanction sought by Plaintiff here, the Court has authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Defendant: “The court may impose a monetary sanction ordering that

one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And Defendant's failure to respond to the Requests for Admission, Set One, was a misuse of the discovery process. C.C.P. § 2023.010(d)

Hence, while the Court here may award Plaintiff a monetary sanction paid by Defendant for Plaintiff's reasonable attorney's fees and costs incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, for attorneys' fees, Plaintiff seeks \$1,732.50 for 3.5 hours of attorney work for this Motion at a billable rate of \$495.00 per hour. Anderson Decl. at ¶ 7. And for costs for this Motion, Plaintiff the \$60.00 filing fee. *Id.*

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$495.00 per hour is reasonable. *But* the number of 3.5 hours requested for this simple, straightforward Motion is unreasonable

This Motion is a layup. All Plaintiff had to do to win it is point out that Plaintiff served the Requests for Admission on Defendant (it did), California law required Defendant to respond (it does), and Defendant never responded (never did). That reasonably should have taken able counsel for Plaintiff *one* hour total. And there is no need for Plaintiff's counsel to spend a second on reply papers or oral argument because this Motion is unopposed.

Regarding the cost of \$60.00 for the filing fee for this Motion, the Court finds that to be a reasonable cost incurred by Plaintiff for this Motion.

Hence, the Court awards Plaintiff from Defendant a monetary sanction of **\$555.00** total for Plaintiff's reasonable attorneys' fees of \$495.00 (= 1.0 hour at \$ 495.00 per hour) and Plaintiff's reasonable costs of the \$60.00 filing fee for this Motion.

Conclusion and Order

Accordingly, the Court **GRANTS** Plaintiff's Motion in all respects. Specifically, the Court **ORDERS** that:

1. The truth of all specified facts in the Requests for Admission, Set One, served on Defendant Thien Nguyen on March 17, 202, is deemed admitted by Defendant Thien Nguyen; and
2. Within 30 days from today, Defendant Thien Nguyen will pay Plaintiff First Technology Federal Credit Union a monetary sanction of \$555.00 total for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Moreover, Defendant Thien Nguyen is put on **NOTICE** that if Defendant Thien

Nguyen fails to comply with this Order within 30 days from today then Defendant Thien Nguyen Plaintiff will be subject to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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